

TENTATIVE RULINGS

FOR: July 10, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

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Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

In the Matter of The Hasty Family Trust

25PR000242

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to

immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Denny Mayeda v. Grant Reynolds et al

21CV001212

DEFENDANT’S MOTION TO DISMISS COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A to allow the moving party to provide sufficient notice of the motion.

June 19 and July 3, 2026 were Court holidays. (See Code Civ. Proc., §§ 10, 135, and Govt. Code, § 6700, subds. (a)(11) and (12).) As a result, June 11, 2026 was the last day for service, by mail, of a notice and papers filed in support of a motion set for hearing on July 10, 2026. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b).) The evidence of service before the Court indicates mail service on June 12, 2026. As such, the moving party failed to serve the notice and moving papers 16 court days plus five calendar days before the hearing as required. Because the other parties to the action have not waived the defect in service, either expressly, or by filing substantive oppositions or non-oppositions to the motion, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

The moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice and moving papers to all other parties, and (3) file a proof of service pursuant to Rules of Court, rule 3.1300, subd. (c).

.....
M5 Automotive LLC v. Kastner Automotive Inc. et al

22CV000567

PLAINTIFF AND CROSS-DEFENDANT M5 AUTOMOTIVE LLC’S MOTION FOR: (1) AN ORDER RULING THAT ENFORCEMENT OF THE FEE AND COST AWARD IS NOT AUTOMATICALLY STAYED BY APPEAL AND THAT AN UNDERTAKING IS REQUIRED; OR, IN THE ALTERNATIVE, (2) AN ORDER REQUIRING A DISCRETIONARY UNDERTAKING

TENTATIVE RULING: The matter is CONTINUED to August 7, 2026, at 8:30 a.m. in Dept. A.

[1] DEFENDANT’S MOTION TO COMPEL ARBITRATION OF PLAINTIFF’S
INDIVIDUAL PAGA CLAIM

TENTATIVE RULING: The motion is GRANTED. Plaintiff is ordered to remit to arbitration her individual PAGA claim asserted through the Complaint in this action. The Clerk shall set the matter for a Status Conference re: Arbitration on January 13, 2027, at 8:30 a.m. in Dept. A. The parties shall, no later than January 6, 2027, file a brief statement informing the Court of the status of arbitration.

A. PROCEDURAL MATTERS

Defendants Solage Management, Inc.’s (“Solage”) and Auberge Resorts LLC’s (“Auberge”) (collectively, “Defendants”) move for an order compelling arbitration of Plaintiff Blaire Trambley’s (“Plaintiff”) individual PAGA claim.

Plaintiff’s Complaint, filed December 22, 2025, is entitled “Complaint for Enforcement Under the Private Attorneys General Act, California Labor Code § 2698, et seq.” and asserts a single cause of action for “Violation of the California Labor Code § 2698 et seq.” on behalf of “Plaintiff [], individually, and on behalf of other aggrieved employees pursuant to the California Private Attorneys General Act.”

On October 17, 2025, Plaintiff filed a separate action, between identical parties, asserting, both individually and on behalf of a class of certain similarly situated employees of Defendants, (1) nine claims for violation of various provisions of the Labor Code, and (2) a claim for Unfair Business Practices in violation of Business & Professions Code section 17200. (See Complaint, filed 10/17/25, in Napa County Superior Court, case no. 25CV002157.) This first-filed matter is hereinafter referred to as the “Class Action.”

On February 19, 2026, in the Class Action, the Court granted Defendants’ motion to compel arbitration of Plaintiff’s individual claims and to dismiss the class claims, based on the exact same¹ Arbitration Agreement and substantially identical evidence as that presented with the present motion. (See Mem., 1:13-16; *cf.* 6/1/26 Declaration of Shelby Vollmers in support of Defendants’ present motion (“Vollmers Decl.”), 6/26/26 Declaration of Andrew Katon (“Katon Decl.”) in opposition to Defendants’ present motion (“Katon Decl.”), 6/26/26 Declaration of Plaintiff in opposition to Defendants’ present motion (“Pltf Decl.”) *with* 1/22/26 Vollmers Decl., 2/4/26 Katon Decl., 2/4/26 Pltf Decl.)

¹ The Arbitration Agreement, attached as Exhibit 2 to the Vollmers Decl. in support of the present motion, contains a Docusign Envelop ID header and a date stamp underneath Solage’s signature on page 7, which does not appear on the version of the Arbitration Agreement, attached as Exhibit 2 to the Vollmers Decl. in support of the motion in the Class Action. (See Vollmers Decl., Exh. 2, p. 7.) These markings are not addressed or raised by either party. The Court assumes the inclusion of the date stamp and Docusign header was an inadvertent technological error, based on the fact that the date stamp shows May 28, 2026, almost two years after the date of Plaintiff’s signing the Arbitration Agreement, and close in time to when Defendants signed and filed the present moving papers. Thus, the Court disregards these markings for purposes of the present Motion.

B. EVIDENTIARY MATTERS

Defendants' Request for Judicial Notice ("RJN") of the February 19, 2026 Minute Order in the Class Action is GRANTED. (Evid. Code, § 452, subd. (d).)

The Court rules on Plaintiff's objections to Defendants' evidence as follows:

Nos. 1-2 (Vollmers Decl., ¶ 6): OVERRULED.

The Court finds there is sufficient foundation for these statements from Ms. Vollmers describing her personal knowledge of the onboarding and hiring process including the HireForms tool used.

Plaintiff's citation to *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, without a pin-cite, is unhelpful to the Court's review of Plaintiff's objections. Nevertheless, the Court does not find the instant circumstances analogous to *Ruiz*. In *Ruiz*, the court found that a declaration attempting to authenticate an arbitration agreement did not meet the evidentiary burden, where it only asserted that "Ruiz was the person who electronically signed the ... agreement," but "never explained how Ruiz's printed electronic signature, or the date and time printed next to the signature, came to be placed on the ... agreement" nor did it "explain how [the declarant] ascertained that the electronic signature on the ... agreement was 'the act of Ruiz.'" (*Ruiz, supra*, 232 Cal.App.4th at 843-44.)

Here, while the Vollmers Decl. is not abundant in details, it explains her role and proficiency in the hiring process and as custodian of those company records and explains that Defendants' use an electronic platform, HireForms, for that process, including for onboarding documents. (Vollmers Decl., ¶¶ 1, 3, 6, 8, 9.) The Court finds that the Vollmers Decl. is sufficient to sustain a finding that the document is what it purports to be, sufficient to authenticate the Arbitration Agreement attached as Exhibit 2 to the declaration. (Evid. Code, § 1400.)

No. 3 (Vollmers Decl., ¶ 7): OVERRULED.

The Court finds there is sufficient foundation for this statement and recognizes its limited applicability only as to Ms. Vollmers' knowledge.

No. 4 (Vollmers Decl., Exh. 2): OVERRULED.

The Court finds that the Vollmers Decl. sufficiently authenticates the Arbitration Agreement and does not find the Agreement to be inadmissible by the hearsay rule. (Evid. Code § 1271.)

C. LEGAL STANDARD

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984)

161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by *prima facie* evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413.) The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35.)

D. DISCUSSION

1. Existence of Arbitration Agreement

The Court previously found, in the Class Action, the Arbitration Agreement between Solage and Plaintiff valid and enforceable, and further found that the Agreement's definition of "Company" provides that covered claims asserted against Auberge are also subject to arbitration.

In opposition to Defendants' motion to compel arbitration in the Class Action, Plaintiff (who was represented by the same counsel as in the present action) argued that Defendants failed to authenticate her electronic signature and that there was no meeting of the minds because the evidence showed that Plaintiff reviewed the Arbitration Agreement for just sixteen seconds and that Plaintiff has no recollection of reviewing or submitting to the Agreement's terms. The Court rejected those arguments. (See RJN, Exh. 3, pp. 2-3.)

In opposition to the present motion, Plaintiff raises those same arguments. (See Opp., 3:23-7:17.) For the same reasons provided in its previous Minute Order as to Plaintiff's attempt to create a factual dispute as to the authenticity of the Arbitration Agreement, the Court rejects Plaintiff's arguments. (See RJN, Exh. 3, pp. 2-3.)

Based on the foregoing, the Court finds that Defendants met their burden of proving the existence of an agreement to arbitrate between Plaintiff and Defendants.

2. Scope of Claims Covered by Arbitration Agreement

Defendants argue that Plaintiff's individual PAGA claim must be resolved in individual arbitration consistent with *Leeper v. Shipt* (2024) 107 Cal.App.5th 1001, *review granted*, *Leeper v. Shipt* (2025) 566 P.3d 234. (Mem., pp. 5-7.) Specifically, Defendants argue that the Arbitration Agreement specifically covers claims brought under PAGA in an individual capacity, and only the representative PAGA claim is excluded from arbitration. (Mem., p. 6; Vollmers Decl., Exh. 2., ¶¶ 5-6.) The Court finds that Defendants have presented evidence sufficient to make a *prima facie* showing that Plaintiff's individual PAGA claim is covered by the Arbitration Agreement, signed by Plaintiff on July 30, 2024. (See *ibid.*; Vollmer Decl. ¶ 6, Exh. 2, ¶ 5.)

Plaintiff appears to concede this point by failing to address or dispute it through the Opposition.

Based on the foregoing, the Court finds that Defendants met their burden of proving that the scope of the Arbitration Agreement covers Plaintiff's individual PAGA claim against Defendants in this action.

3. Plaintiff Fails to Show that the Arbitration Agreement is Unconscionable

"Both procedural and substantive unconscionability must be present before a contract or term will be deemed unconscionable." (*Serafin v. Balco Properties Ltd., LLC*, 235 Cal.App.4th 165, 178.) "Both, however, need not be present to the same degree. A sliding scale is applied so that the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Ibid.* [internal quotations omitted].) As noted, the opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Rosenthal, supra*, 14 Cal.4th at 413.)

a. *Plaintiff Fails to Show Procedural Unconscionability*

The Court previously found, in the Class Action, that Plaintiff failed to show that the circumstances of the formation of the Arbitration Agreement involved oppression or surprise such that a significantly heightened scrutiny of the fairness of its terms was required. (RJN, Exh. 3, pp. 3-4.) As noted, Plaintiff submitted substantially the same evidence with her present Opposition as with her opposition to the motion in the Class Action. Moreover, Plaintiff's procedural unconscionability arguments within her Opposition are almost identical to those raised in opposition to the motion in the Class Action. For that reason, the Court refers to its prior order and finds that Plaintiff has not shown procedural unconscionability. (*Ibid.*)

b. *The Court Does Not Find the Arbitration Agreement Substantively Unconscionable*

Although the foregoing conclusion regarding procedural unconscionability prevents a finding of unconscionability, the Court elects to briefly address the substantive unconscionability piece. "Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246.)

Plaintiff argues that the Arbitration Agreement is substantively unconscionable because the Agreement is overbroad in scope and lacks mutuality, waives a jury trial, has indefinite duration, and unfairly targets claims likely to be brought by an employee and not the employer.

With respect to the last argument regarding claims likely to be brought by an employee and not the employer, the Court previously denied this argument because Plaintiff failed to identify any portion of the Arbitration Agreement that was purportedly more likely to be used by an employer than an employee and, in any event, *Baltazar v. Forever 21 Inc.* (2016) 62 Cal.4th 1237, 1248, fn.4 holds that a provision is not "unfairly one-sided merely because one side is, as a practical matter, more likely to make use of it." (RJN, Exh. 3, p. 5.) Plaintiff now identifies a

portion of Paragraph 11 as the challenged provision and argues that the Defendants and the Court misplaced reliance on *Baltazar*. (Opp., 13:27-14:2.) Paragraph 11 provides for either party to seek injunctive relief or other provisional remedies in court. This is the substantially same provision that the court in *Baltazar* considered with respect to the same argument raised by the plaintiff. *Baltazar* rejected the argument. (*Baltazar*, *supra*, 62 Cal.4th at 1246-47 [affirming that an arbitration agreement between employer and employee is not substantively unconscionable insofar as it allowed the parties to seek a temporary restraining order or preliminary injunctive relief in the superior court, even if employer was more likely than employee to seek provisional relief during the pendency of an arbitration].) Thus, Plaintiff's reasserted argument is unavailing.

With respect to the lack of mutuality, Plaintiff argues that any claims the Defendants' officers, directors, supervisors, managers, employees, or agents may have against Plaintiff do not have to go to arbitration, but all of Plaintiff's claims against them do. (Opp., 12:10-12, citing *Cook v. Univ. of S. Cal.* (2024) 102 Cal.App.4th 312, 328.) Specifically, Paragraph 5 of the Arbitration Agreement states that "Covered Claims" include "Claims Employee may have against the Company or *against its officers, directors, supervisors, managers, employees, or agents in their capacity as such or otherwise*, or that *the Company may have against the Employee*." (Vollmers Decl., Exh. 2, ¶ 5. Emphasis added.) *Cook* held that similar language in an arbitration agreement "provide[d] a significant benefit to [the defendant employer's] related entitles without any reciprocal benefit to [the plaintiff employee]." (*Cook*, *supra*, 102 Cal.App.4th at 328.) As in *Cook*, Defendants offer no justification for this one-sided treatment, as Defendants failed to file anything by way of a Reply. Based on the foregoing, the Court finds merit to Plaintiff's argument that the Arbitration Agreement's lack of mutuality in the claims that are subject to arbitration is unfairly in Defendants' favor.

With respect to the indefinite duration, Plaintiff again cites to *Cook*. (Opp., 13:1-8.) However, *Cook* is distinguishable for two reasons. First, the arbitration agreement there expressly stated it would continue unless and until both parties specifically terminated the agreement, defeating the terminable at will doctrine. (*Id.*, *supra*, 102 Cal.App.5th at 325-26.) Second, there, the court found the arbitration agreement was not limited to arbitration of employment-related claims. (*Id.*, at 329.) Here, the Court does not find this term substantively unconscionable, as (1) there is no express term regarding the expiration of the agreement and therefore the terminable at will doctrine presumably applies, and (2) the scope of the Arbitration Agreement is reasonably limited to Plaintiff's employment, such that the fact that it expressly survives the termination of Plaintiff's employment may be construed as for the purpose of including claims regarding termination of Plaintiff's employment within the scope of arbitration. Based on the foregoing, the Court does not find the Arbitration Agreement unconscionable due to its implied duration.

With respect to the waiver of jury trial, Plaintiff argues that Paragraph 11 waives the right to a jury trial for *any* claims between the parties, even those outside of the Covered Claims going to arbitration, and therefore this provision is an impermissible pre-dispute jury waiver. (Opp., 12:21-27, citing *Stoker v. Blue Origin, LLC* (2026) 120 Cal.App.5th 91, 110.) The Court disagrees with Plaintiff's broad interpretation of Paragraph 11. While Paragraph 11 does not expressly reference the Covered Claims, it is clear to the Court, based on qualifying language therein, that the discussion of a jury trial waiver in Paragraph 11 is only with respect to the

claims to be arbitrated. (See Vollmers Decl., Exh. 2, ¶ 11 [“The Parties understand and fully agree that *by entering into this Agreement to arbitrate*, the Parties are giving up their constitutional right to have a trial by jury and giving up the Parties’ normal rights of appeal *following the rendering of a decision*, except as California law provides *for judicial review of arbitration proceedings*. The Parties anticipate that by entering into this Agreement, *they will gain the benefits of a speedy and less expensive dispute resolution procedure....*”].) Based on the foregoing, the Court does not find the Arbitration Agreement unconscionable due to the waiver of trial by jury provision in Paragraph 11.

c. *Conclusion*

“A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree *and* the contract contains terms that are unreasonably favorable to the other party.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 138. *Italics added.*) “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Id.* at 126.)

As discussed above, Plaintiff has only shown that one provision of the Arbitration Agreement contains substantive unconscionability—the portion of the sentence in Paragraph 5 identified in italics as follows: “Claims Employee may have against the Company *or against its officers, directors, supervisors, managers, employees, or agents in their capacity as such or otherwise*, or that the Company may have against the Employee” (“Paragraph 5 provision”).

That said, Plaintiff failed to show a lack of meaningful choice in deciding whether to sign the Arbitration Agreement, thus preventing a finding of overall unconscionability. Even assuming *arguendo* the Court could make a finding of unconscionability, the Court does not find, in the context of the lack of evidence of oppression or surprise in the circumstances of the agreement’s formation, that this single Paragraph 5 provision justifies withholding enforcement of the Arbitration Agreement in its entirety.

First, Plaintiff does not contend that her present claims involve claims against Defendants’ “officers, directors, supervisors, managers, employees, or agents in their capacity as such or otherwise.” While the Court notes an agent was originally included as a defendant party, that party has since been dismissed from the matter. (See Compl., ¶ 8; 4/27/26 Dismissal.) Thus, it does not appear that Defendants are benefiting from, or Plaintiff is suffering any detriment by, the Paragraph 5 provision and, therefore the purported lack of mutuality is not at issue.

Second, if it were at issue, the Arbitration Agreement provides that “[i]n the event that any provision or any portion of any provision thereof or any surviving agreement made a part hereof becomes or is declared by a court of competent jurisdiction or arbitrator to be illegal, unenforceable, or void, this Agreement shall continue in full force and effect without said provision or portion of provision.” (Vollmers Decl., Exh. 2, ¶ 15.) “An unconscionable contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms. [Citation.]” (*Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 223.) ““In deciding whether to sever terms rather than to preclude enforcement of the provision

altogether, the overarching inquiry is whether the interests of justice would be furthered by severance; the strong preference is to sever unless the agreement is ‘permeated’ by unconscionability.’ [Citation.]” (*Magno v. The College Network, Inc.* (2016) 1 Cal.App.5th 277, 292.)

As noted, Plaintiff has only shown this single Paragraph 5 provision as evidence that the Arbitration Agreement is substantively unconscionable. The Court does not find that provision to permeate the agreement with an unlawful purpose. Based on the lack of evidence of oppression or surprise in the circumstances surrounding the formation of the agreement, and the paucity of provisions shown to be unfair, the Court does not find that the agreement is permeated by unconscionability such that it should not be enforced against Plaintiff.

Based on the foregoing, the Motion is GRANTED.

[2] DEFENDANT’S DEMURRER TO PLAINTIFF’S REPRESENTATIVE PAGA CLAIM

TENTATIVE RULING: The Demurrer is OVERRULED. Defendants are granted 10 days’ leave to answer the Complaint. (See Rules of Court, rule 3.1320(g).)

A. PROCEDURAL MATTERS

Defendants Solage Management, Inc. (“Solage”) and Auberge Resorts LLC (“Auberge”) (collectively, “Defendants”) demur, pursuant to Code of Civil of procedure section 430.10, subd. (c),² to Plaintiff Blaire Trambley’s (“Plaintiff”) representative claim under the Private Attorney General Act (“PAGA”). Defendants so move on the ground that the representative PAGA claim is barred because there is another action pending between the same parties on the same cause of action—specifically in the case of *Burwell v. Solage Management, Inc., et al.*, Napa County Superior Court, case no. 25CV001894 (*Burwell* Action).

Plaintiff’s Complaint, filed December 22, 2025, is entitled “Complaint for Enforcement Under the Private Attorneys General Act, California Labor Code § 2698, et seq.” and asserts a single cause of action for “Violation of the California Labor Code § 2698 et seq.” on behalf of “Plaintiff [], individually, and on behalf of other aggrieved employees pursuant to the California Private Attorneys General Act.” By way of the Court’s concurrent ruling on Defendants’ motion to compel arbitration, Plaintiff’s individual PAGA claim has been ordered to arbitration. This leaves only Plaintiff’s representative PAGA claim before the Court in the present matter.

Defendants’ Request for Judicial Notice (“RJN”) of the court records in the *Burwell* Action (Exhibits G and J) and in the present matter (Exhibit I) is GRANTED. (Evid. Code, § 452, subd. (d).) The RJN of the LWDA letters in both actions (Exhibits F and H) is DENIED on the ground that the subject matter thereof is not appropriate matter for judicial notice.

The Complaint in the *Burwell* Action is brought by a former employee of Solage, Christine Zantman Burwell (“Burwell”). The Complaint asserts, both individually and on behalf of a class of certain similarly situated employees, eight claims for violation of various provisions

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

of the Labor Code, three additional claims for failure to pay wages, a claim for Unfair Business Practices, and a claim for civil penalties under PAGA. On February 24, 2026, the Court adjudicated Defendants’ motion to compel arbitration in the *Burwell* Action, and (1) dismissed Plaintiff’s class claims, (2) compelled her individual *non-PAGA* claims to arbitration,³ and (3) stayed Plaintiff’s PAGA claim (*both* individual and representative) pending completion of arbitration. Thus, the current state of the *Burwell* Action is that the only claim before the Court—the entire PAGA claim—is stayed pending arbitration of Burwell’s individual non-PAGA claims.

B. LEGAL STANDARD

“The party against whom a complaint ... has been filed may object, by demurrer ..., to the pleading on any one or more of the following grounds: ... (c) There is another action pending between the same parties on the same cause of action.” (§ 430.10.) This ground is also known as the “statutory plea of abatement.” (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 788.) It requires “absolute identity of parties, causes of action [and] remedies sought in the initial and subsequent actions.” (*Ibid.*)

C. DISCUSSION

Despite their Notice of Demurrer and Demurrer, Defendants appear to concede through their Memorandum that the *Burwell* Action and present action do not involve absolutely identical parties or causes of action and therefore do not satisfy the requirements of section 430.10, subdivision (c). (Mem., 4:9-11, 5:10-6:21.) Moreover, this point is raised by Plaintiff in Opposition, and Defendants fail to dispute or address it by failing to file a Reply.

Rather, Defendants’ Memorandum argues that the present action should be stayed pending the *Burwell* Action under the common law rule of exclusive concurrent jurisdiction. While section 430.10, subdivision (c) was an attempt to codify that common law rule, the statutory and common law pleas in abatement are applied differently. (*Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 788 [“Although the rule of exclusive concurrent jurisdiction is similar in effect to the statutory plea in abatement, it has been interpreted and applied more expansively, and therefore may apply where the narrow grounds required for a statutory plea of abatement do not exist.”].) Namely, the common law rule of exclusive concurrent jurisdiction does not require identical parties or causes of action. (*Ibid.*; see also Mem., 4:5-8, 12-19.) The common law rule of exclusive concurrent jurisdiction only requires that “the court exercising original jurisdiction has the power to bring before it all the necessary parties.” (*Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 788.)

Defendants’ demurrer fails for the following reasons.

³ Unlike the arbitration agreement for Plaintiff Trambly which, as discussed in the Court’s concurrent ruling, expressly split a PAGA claim between individual (subject to arbitration) and representative (excluded from arbitration) capacities, Burwell’s arbitration agreement excluded from its scope *all* claims arising under PAGA, whether relating to Plaintiff’s own employment or the employment of others.

First, neither Defendants' Notice of Demurrer nor Demurrer include "the common law rule of exclusive concurrent jurisdiction" as a ground for the relief sought, in violation of Rules of Court, rule 3.1110(a) and section 1010. The Court generally cannot grant different relief, or relief on *different grounds*, than that stated in the notice of motion. (See *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.)

Even were the Court to consider it as a ground for their demurrer, the common law rule does not support Defendants' primary relief sought through the demurrer—to *dismiss* the Complaint without leave to amend. (See Mem., 3:1-3, 7:27-28, 8:6-7.) Rather, "[w]here a demurrer is sustained on the ground of another action pending, the proper order is not a dismissal, but abatement of further proceedings pending termination of the first action." (*Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 788.)

Turning to Defendants' alternative relief requested—a stay pending the resolution in the *Burwell* Action—the Court does not find that Defendants have shown that the conditions for issuance of the common law rule of exclusive concurrent jurisdiction exist here. Namely, Defendants ignore that the common law rule applies "when two superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation" and "is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy, and preventing vexatious litigation and multiplicity of suits." (*Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 786-87.) Here, as Plaintiff notes in Opposition, both matters are before the same court and therefore the common law rule does not appear applicable.

Moreover, Plaintiff persuasively argues in Opposition that staying her case pending the *Burwell* Action would not promote the interests of justice, economy, or efficiency because the *Burwell* Action has not been resolved and may not ever be resolved and, therefore, there is a great risk that evidence related to Plaintiff's claims will grow stale or be lost to time. While Plaintiff does not dispute that the real party in interest in PAGA actions (the State) cannot recover duplicative penalties for the same alleged wage and hour violations. However, Plaintiff argues that, in light of both cases being before the same court, ordinary case management tools can be implemented to manage the overlap and avoid any duplication without the need for an indefinite stay of the present case. The Court also finds support for denial of a stay by Plaintiff's reference to *Williams v. Sup. Ct.* (2017) 3 Cal.5th 531, 546-47 which stands for the proposition that: "PAGA does not make other potentially aggrieved employees parties or clients of plaintiff's counsel, does not impose on a plaintiff or counsel any express fiduciary obligations, and does not subject a plaintiff or counsel to scrutiny with respect to the ability to represent a large class." (See Opp., 3:21-27.) Thus, there is no mechanism to ensure Plaintiff's rights are protected through the *Burwell* Action if the present action is stayed, and vice versa.

Based on all the foregoing reasons, the demurrer is OVERRULED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Giselle Athziry Munoz

23PR000051

REVIEW HEARING

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Adrian Ortiz v. Harvest Inn Team, LLC

25CV000565

DEFENDANT’S MOTION TO COMPEL ARBITRATION

TENTATIVE RULING: The motion is DENIED.

Defendant Harvest Inn Team, LLC (Harvest Inn) moves, pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 and the Federal Arbitration Act (9 U.S.C. §§ 1 and 16), for an order compelling Plaintiff Adrian Ortiz to submit his individual, non-PAGA claims to arbitration pursuant to a written arbitration agreement. Harvest Inn further moves for an order enforcing the agreement’s class and collective action waivers by dismissal of class and collective claims. Finally, Harvest Inn seeks a stay of the instant litigation pending resolution of the arbitration.

A. PRELIMINARY MATTERS

The Court rules on Plaintiff’s evidentiary objections as follows.

Objection No. 1: (Labelled Objection No. 4. See Objections at 2:14-25.) SUSTAINED as to “Mr. Ortiz’s first language is Spanish” on grounds of lack of personal knowledge and lack of foundation. OVERRULED in all other respects.

Objection Nos. 2-4: OVERRULED.

Objection No. 5: (Labelled Objection No. 4. See Objections at 4:3-9.) SUSTAINED as to “and determined that Plaintiff’s individual non PAGA claims are subject to arbitration.” OVERRULED in all other respects.

Objection No. 6: (Labelled Objection No. 5. See Objections at 4:3-9.) OVERRULED. The only portion of the subject matter that tends towards hearsay is the statement “During the telephone conference, agreed [sic] with this process.” (See Objections at 4:19-20; see also Declaration of Shane Singh at 2:28.) However, as the sentence contains no subject, it is not clearly hearsay. It is, however, of no evidentiary value for the same reason.

B. LEGAL BACKGROUND

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a petition to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*)). The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*)

C. LEGAL ANALYSIS

1. Harvest Inn Makes a Prima Facie Showing of a Binding Agreement to Arbitrate All of Plaintiff's Claims Other than Non-Individual PAGA Claims

Harvest Inn presents evidence that it and Plaintiff entered into that certain Arbitration Agreement attached as Exhibit A to the Declaration of Ana Bahena (Bahena Decl.).⁴ Mr. Ortiz concedes that during his onboarding meeting “I recall signing various documents relating to benefits, retirement information, and other employment forms.” (Declaration of Adrian Ortiz at ¶ 13.) He further declares that “I could not understand the documents so I told her I would sign and then signed the documents.” (*Id.* at ¶ 16.) Finally, Mr. Ortiz declares that “I was shown a document by my attorney that I understand Defendant claims is an arbitration agreement I signed. I do not remember signing that document, and it does not look familiar to me, but I recognize my signature.” (*Id.* at ¶ 18.)

The Court finds that the scope of claims subject to arbitration pursuant to the Arbitration Agreement is broad and encompasses all of Plaintiff's claims against Walsh in the instant action, except for Non-Individual PAGA Claims, which are expressly excluded pursuant to Section 2, subdivision (iii).

Based on the foregoing, the Court finds that Walsh has carried its initial burden of proving, by a preponderance of the evidence, an agreement to arbitrate each of Plaintiff's claims, except for Non-Individual PAGA Claims. (*Rosenthal, supra*, 14 Cal.4th at 413.)

2. Harvest Inn Has Waived the Right to Arbitrate the Dispute

Through the Opposition, Plaintiff argues that Walsh waived its right to compel arbitration. (See *id.* at 3:20, *et seq.*) The Court agrees.

⁴ A certified English translation of the Arbitration Agreement is attached as Exhibit C to the Declaration of Bruce Taylor filed May 19, 2026. The Court finds that the Declaration of Mr. Taylor is sufficient to certify the English-language translation of the Agreement.

“On petition of a party to an arbitration agreement . . . the court shall order the petitioner and the respondent to arbitrate the controversy . . . unless it determines that . . . [t]he right to compel arbitration has been waived by the petitioner . . .” (Code Civ. Proc., § 1281.2, subd. (a).) As the California Supreme Court has made clear, the catch-all category called “waiver” actually consists of at least four distinct legal defenses to the enforcement of an agreement to arbitrate. As discussed in *Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307 (*Platt Pacific*), “[g]enerally, ‘waiver’ denotes the voluntary relinquishment of a known right. But it can also mean the loss of an opportunity or a right as a result of a party’s failure to perform an act it is required to perform, regardless of the party’s intent to abandon or relinquish the right....” (*Id.* at p. 315.) The *Platt Pacific* Court noted that one line of case law discusses “that a party may ‘waive’ its right to arbitrate by failing to timely demand arbitration. We conclude that those decisions use the word ‘waiver’ in the sense of the loss or forfeiture of a right resulting from failure to perform a required act.” (*Id.* at 315.) The Court discussed another line of cases addressing the question, “whether a party has abandoned its right to arbitration by conduct inconsistent with the exercise of the right” and noted that this question “is altogether different from the question of whether a condition precedent to the contractual right to arbitrate has occurred or has been legally excused.” (*Id.* at 318.)

The Court further elucidated this area of law in *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 (*Quach*). There, the Court held that “[i]n determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 (*Quach*).) “[U]nder California law, a party may, as a result of its litigation conduct, lose its right to compel arbitration on various grounds” including estoppel, forfeiture, and timeliness. (*Ibid.*)

“To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584 (*Quach*).)

Analysis in the present context requires a somewhat detailed review of the litigation.

Mr. Ortiz served Harvest Inn with summons and a copy of the Complaint on April 10, 2025. On September 19, 2025, Harvest Inn filed an Answer consisting of a general denial and fifty-four affirmative defenses asserted in conclusory, abstract language. As its forty-sixth affirmative defense, Harvest Inn alleges that “Plaintiff is subject to a valid and enforceable arbitration agreement and must submit his individual PAGA claims to arbitration under *Viking River Cruises, Inc. v. Moriana*.” (Answer at 12:20-21.)

Mr. Ortiz presents evidence of the following. On September 23, 2025, counsel for Mr. Ortiz emailed counsel for Harvest Inn stating, “as previously noted, Defendant’s Answer references a purported arbitration agreement. To date, however, no copy of such agreement has been produced. Please advise.” (Declaration of Joshua Shirian at ¶ 7, Exh. C (Shirian Decl.).) On

September 26, 2025, Mr. Ortiz propounded discovery on Harvest Inn. (See *id.* at ¶ 8.) On October 6, 2025, and again on October 7, 2026, counsel for Mr. Ortiz sent follow up emails inquiring about the arbitration agreement. (See *id.* at ¶ 10, Exh. D.)

On October 7, 2025, the parties submitted a Joint Case Management Conference Statement. In a section titled “Other Matters – Defendants” the statement reads, “Plaintiff signed a Voluntary Arbitration Agreement, which included a class action waiver, on or around May 20, 2021.” (See *id.* at § IV(B), p. 4.) In the immediately following section titled “Alternative Dispute Resolution,” the “Defendants” subdivision states, in its entirety, “[t]he Parties have discussed an early mediation, and Defendants would be interested in an early mediation. Prospective mediators have been discussed, but no agreement has been reached.” (*Id.* at § V(B), p. 4.) The Joint CMC Statement contains no mention of an intent to arbitrate the dispute.

Mr. Ortiz presents evidence that counsel for Harvest Inn provided counsel for Mr. Ortiz with a copy of the subject arbitration agreement on October 14, 2025. On October 21, 2025, counsel for Mr. Ortiz emailed counsel for Harvest Inn, in part, “please be advised that if Defendant intends to file a Motion to Compel Arbitration, Plaintiff will oppose such motion. Nevertheless, we remain open to a meet and confer discussion on the issue.” (Shirian Decl. at ¶ 14, Exh. G.) Counsel for Harvest Inn never replied to this inquiry, and never, at any point, suggested an intention to proceed to arbitration. (*Id.* at ¶ 15.) At or around this time, counsel began discussing proposed language for a Belaire West Notice. (*Id.* at ¶ 16, Exh. H.)

On November 14, 2025, Harvest Inn filed a Case Management Conference Statement (CMC Statement) that confirmed that “Defendant has provided Plaintiff’s attorneys with a copy of the arbitration agreement signed by Ortiz, which includes a class action waiver.”

Harvest Inn, through the Reply, argues that “[t]he assertion of the affirmative defense and production of the Agreement during this litigation, are themselves steps consistent with preserving arbitration, not abandoning it.” (*Id.* at 3:10-12.) In light of the shotgun, boilerplate approach to alleging affirmative defenses in the Answer, the Court is unpersuaded that the mere inclusion of the forty-sixth affirmative defense constitutes particularly strong evidence of an intent by Harvest Inn to pursue arbitration. However, it is unquestionably not inconsistent with such intent.

It is uncontroverted that sometime between December 23, 2025, and January 5, 2026, the Lewis Brisbois Bisgaard & Smith attorney handling the litigation for Harvest Inn changed from Dominique N. Thomas to Shane Singh. (See Notice of Change of Handling Attorney Within Firm filed January 5, 2026; see also Declaration of Shane Singh at ¶ 3 and Exh. B (Singh Decl.), and Shirian Decl. at ¶¶ 5 and 20 and Exh. J.)

Thereafter, Harvest Inn filed another CMC Statement on January 13, 2026, on Judicial Council form CM-110. The CMC Statement was signed by attorney Shane Singh. Section 10, subdivision (c) of the form states, “In the table below, indicate the ADR process or processes that the party or parties are willing to participate in, have agreed to participate in, or have already participated in (check all that apply and provide the specified information) . . .” Harvest Inn

checked the boxes corresponding to “Mediation” and “Settlement Conference.” Of note, the box corresponding to “Binding Private Arbitration” was not checked.

More importantly to the instant analysis, through that January 13, 2026, CMC Statement, Harvest Inn explicitly requested a jury trial in the matter. (See *id.* at § 5.) On January 23, 2026, Harvest Inn remitted its jury fee deposit. The Notice of Deposit, also filed January 23, 2026, was also signed by attorney Shane Singh.

Harvest Inn filed another CMC Statement, signed by Shane Singh, on February 13, 2026. It, too, requested a jury trial, and indicated a willingness to participate in a settlement conference but no interest in participating in mediation or binding private arbitration. (See *id.* at §§ 5 and 10, subd. (c).)

Mr. Ortiz presents evidence that on March 11, 2026, counsel for Harvest Inn proposed language for a protective order to be entered in the matter. (See Shirian Decl. at ¶ 26.) On March 24, 2026, Mr. Singh, on behalf of Harvest Inn filed a Stipulation and [Proposed] Protective Order with the Court, which the Court signed and entered on March 30, 2026. During this period the parties continued negotiating a Belaire West Notice and further agreed to Simpluris as third-party administrator. (*Ibid.*)

Finally, Mr. Ortiz presents evidence that, on or about April 7, 2026, “Defendant communicated for the first time that it intended to seek to compel Plaintiff’s claims to arbitration based on the purported arbitration agreement.” (Shirian Decl. at ¶ 27.)

This first communication of an intent to move to compel arbitration was three days’ shy of the one-year anniversary of service of process on Harvest Inn in the action, and six months after Harvest Inn represented to the Court that Plaintiff had signed an arbitration agreement. More important than the mere delay, however, are the affirmative acts that Harvest Inn took in the interim which evidence an intent to relinquish and/or abandon the right to arbitrate the dispute: (1) Multiple requests for a jury trial and the depositing of jury fees; (2) Multiple CMC Statements indicating a willingness to mediate and/or participate in a settlement conference but giving no indication of a willingness to participate in private binding arbitration; (3) The filing of a stipulated request for entry, by the Court, of a protective order; (4) Negotiations towards a Belaire West Notice; and (5) Agreement to the selection of a third-party administrator. The Court further notes Harvest Inn’s counsel’s failure to respond to inquiries from Mr. Ortiz’ counsel regarding whether Harvest Inn intended to move to compel arbitration.

The Court finds that the foregoing establishes “by clear and convincing evidence that [Harvest Inn] knew of the contractual right and intentionally relinquished or abandoned it.” (*Quach, supra*, 16 Cal.5th at 584.)

Importantly, Harvest Inn does not deny or refute any of the foregoing facts or evidence through its Reply papers. Harvest Inn argues, in effect, that after Mr. Singh took over handling of the case in December 2025, he proceeded to review the materials and at some point (presumably not until April 2026) *he* “determined it was appropriate to proceed with arbitration.” (Reply at 3:12-24.)

From the Court’s perspective, however, Harvest Inn had, by that point, already intentionally relinquished its right to compel Plaintiff to arbitrate. Moreover, the explanation ignores the fact that *Mr. Singh* was involved in several of the acts that evidence Harvest Inn’s intention to relinquish and abandon the right to arbitrate the dispute including the request for a jury trial and submission of jury fees and filing of the request that the Court enter a protective order in the matter.

Finally, the Court finds that Mr. Ortiz has also presented clear and convincing evidence that Harvest Inn knew of its contractual right to enforce Mr. Ortiz’ class action waiver and intentionally relinquished and/or abandoned it as well. The Court notes that the Belaire West Notice and third-party administrator are necessary only in class actions. Counsel’s active discussion and agreement on these topics are significant indicia of an intention to abandon that aspect of the agreement as well.

Based on the foregoing, the motion is DENIED.

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Bank of America N.A. v. Sydney L. Grant

25CV002709

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING: The motion is GRANTED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Bank of America, N.A. (“Plaintiff”) moves, pursuant to Code of Civil Procedure §§ 2023.010 *et seq.* and 2033.280,⁵ for an order that truth of all specified facts in the Request for Admissions, Set One, propounded by plaintiff Bank of America, N.A. on defendant Sydney L. Grant by mail on 03/23/2026, be deemed admitted.

“If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.” (§ 2033.280, subd. (b).) “The

⁵ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (§ 2033.280, subd. (c).)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Brian Langedyk at ¶¶ 2-3, Exh. 1.) As such, the Court orders that the genuineness of the documents and the truth of the matters specified in the RFAs are deemed admitted.

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In The Matter of Catherine Marie Byers

26CV000081

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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In The Matter of Alice Adele Anamosa

26CV000939

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.